

25STCV12201 25STCV12201

County: los-angeles

Division: Civil Law and Motion

Department: 834

Hearing date: 2026-08-18

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Case Number: 25STCV12201 Hearing Date: August 18, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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NANCY KIM, TRUSTEE OF THE KIM FAMILY TRUST, DATED
SEPTEMBER 9, 2011,

Plaintiff(s),

vs.

HIGHGROVE
HOLDINGS MANAGEMENT, LLC, et al.,

Defendant(s).

Case No.:

25STCV12201

Hearing Date:

August 18, 2026

[TENTATIVE]

ORDER RE: APPLICATIONS FOR WRIT OF ATTACHMENT

Nancy Kim ("Plaintiff"), as trustee of the Kim Family Trust, Dated September 9, 2011 ("Trust"), seeks writs of attachment against defendants Residential Properties Resources Fund I, LLC ("RPRF I") and Residential Properties Resources Fund II, LLC ("RPRF II") (collectively, "Funds").

The hearing on the two applications is continued for further briefing.

I.

Background

1. Factual Background

A common acquaintance introduced Plaintiff to defendant David L. Tomblin ("Tomblin"). (Kim Decl., ¶ 3.) The acquaintance identified Tomblin as a Palos Verdes resident with decades working in real estate investments, and also as a professor at Marymount University in Palos Verdes. (Kim Decl., ¶ 4.) Tomblin was pitching a real estate investment opportunity. (Kim Decl., ¶ 5.) Plaintiff and Tomblin discussed the substance of the opportunity, which involved pooling investment funds into the Funds, to be managed by defendant Highgrove Holdings Management, LLC ("Highgrove"), formed for that purpose. (Kim Decl., ¶¶ 6-7.)

On April 25, 2016, Tomblin provided Plaintiff a Subscription Agreement for RPRF I ("Subscription Agreement"), which Plaintiff completed for the Trust designating a \$100,000 capital investment. (Kim Decl., ¶ 8, Ex. 1.) Tomblin signed the acceptance of the Subscription Agreement for RPRF I and Highgrove. (Kim Decl., ¶ 8.) The same day, Tomblin provided RPRF I's Amended and Restated LLC Agreement, dated October 21, 2013. (Kim Decl., ¶ 9, Ex. 2.)

Still on April 25, 2016, Plaintiff wrote a check to RPRF I for \$100,000. (Kim Decl., ¶ 10.) She wrote a second check on September 12, 2016 for \$200,000 and a third check on March 30, 2017 for \$150,000. (Kim Decl., ¶ 10.) An Addendum to Subscription Agreement ("Addendum"), signed by the parties, reflects this total \$450,000 investment.

(Kim Decl., ¶ 10, Ex. 3.)

In December 2020, Highgrove sent Plaintiff a document titled “Class of 2020 Recapitalization and 2019 Compilation” (“Recapitalization Form”). (Kim Decl., ¶ 11, Ex. 4.) This document allowed investors the choice to roll their investment over until the next recapitalization period, withdraw some and roll the remaining, or withdraw the entirety. (Kim Decl., ¶ 11.) Tomblin persuaded Kim to roll over the Trust’s investment by guaranteeing a full return in or about 2023. (Kim Decl., ¶ 14.)

On December 12, 2020, Plaintiff texted Tomblin stating that the Trust would maintain its funds with RPRF I, but needed to “cash out” in February 2022. (Kim Decl., ¶ 15.) Tomblin agreed. (Kim Decl., ¶ 15, Ex. 6.) Plaintiff then signed the Trust’s election to defer liquidation to February 1, 2022. (Kim Decl., ¶ 16, Ex. 5.)

As of first quarter 2022, the Trust’s investment account with the Funds was valued at \$518,998.60. (Kim Decl., ¶ 17, Ex. 7.)

After February 1, 2022, Plaintiff began discussing liquidation with Tomblin. (Kim Decl., ¶ 19.) Tomblin affirmed his obligation to liquidate, but urged Plaintiff to keep the investment in the Funds until outside financing could be secured. (Kim Decl., ¶ 19.) Tomblin represented that he would issue the Trust a check for \$518,998.60 once he obtained that financing. (Kim Decl., ¶ 19.)

On August 28, 2024, the Trust’s counsel sent a demand letter to Tomblin requesting liquidation in the amount of \$518,998.60. (Kim Decl., ¶ 20, Ex. 8.) Plaintiff contends Tomblin, Highgrove, and the Funds (collectively, “Defendants”) have not returned any funds. (Kim Decl., ¶ 21.) Defendants contend they issued, and the Trust accepted, at least two payments from the Funds by February 1, 2022 totaling \$51,438.26. (Tomblin Decl., ¶ 9, Ex. B.)

RPRF I has sold all real property assets to RPRF II as of June 2020, and now only owns a membership interest in RPRF II of about \$198,217.29. (Kim Decl., ¶ 10.)

2. Procedural History

On April 25, 2025, Plaintiff filed this action against Defendants for breach of contract, fraud, and accounting. Proofs of service filed July 3, 2025 show Plaintiff served all Defendants with the summons and complaint by substituted service on June 12, 2025. On August 22, 2025, Defendants filed their answer to the complaint.

On June 15, 2026, Plaintiff filed the instant applications for writs of attachment against the Funds.

On August 11, 2026, Defendants filed their opposition. The same day, Defendants filed a motion to seal portions of the opposition and accompanying declaration (but filed it in the home court). Still the same day, Defendants filed a notice of stay of proceedings for an automatic bankruptcy stay. This stay applies to Highgrove and RPRF II, but not Tomblin or RPRF I.

On August 13, 2026, Plaintiff filed her reply.

II.

Discussion

Plaintiff seeks attachment against the Funds. The applications note the same amount for both Funds, \$745,096.25, including estimated costs of \$500 and estimated allowable attorney fees of \$12,500. Plaintiff alleges all Defendants are alter egos for and agents of the other Defendants. (Compl., ¶ 8.)

Defendants have filed notice of automatic bankruptcy stays for proceeding against Highgrove and RPRF II, but not Tomblin nor RPRF I. An automatic bankruptcy stay applies only to the bankruptcy debtor, and not to other defendants. (Higgins v. Superior Court (2017) 15 Cal.App.5th 937, 975.) Therefore, Plaintiff may be able to proceed with her application for writ of attachment against RPRF I alone; however, if she wishes to proceed, she must show this Court can decide the issue without proceeding against Highgrove and RPRF II in violation of the automatic bankruptcy stay.

III.

Conclusion

In light of the automatic bankruptcy stay applicable to RPRF II but not RPRF I, the Court, on its own motion, continues the hearing to October 8, 2026 at 9:30 a.m. Plaintiff is ordered to file and serve a supplemental brief not to exceed four pages by September 8, 2026 on the limited issue of whether she may seek attachment against RPRF I in light of the automatic bankruptcy stay applicable to Highgrove and RPRF II. Alternatively, Plaintiff may withdraw her applications. Defendants are ordered to file and serve their supplemental response, not to exceed four pages, on or before September 22, 2026.

Finally, Defendants should notice and file their motion to seal in the appropriate Department. If the applications for writ of attachment go forward, and the request to seal is related to those applications, the motion to seal should be filed in Department 834 and moving party must reserve a date accordingly.

Date: August 18, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should

arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

If the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.